

# Admiralty Jurisdiction (India) Act, 1860

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[Rule ADMIRALTY-JURISDICTION-INDIA-ACT-1860 of 1860](#)

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[\(23 & 24 VICT., C. 88\)](#)

[1366.](#)

[\[13th August, 1860\]](#)

[An Act to extend certain Provisions for Admiralty Jurisdiction in the Colonies to Her Majesty's Territories in India.](#)

[\[Preamble reciting 12 & 13 Vict. C. 96, Section 5; and enacting words were repealed by 55 & 56 Vict., C. 19\]](#)

[1.](#)

[\[ Applicability of principal Act to British India and British Burma.-](#)

[\[Substituted by A.A.P.O., 1937.\]](#)

[The Admiralty Offences \(Colonial\) Act, 1849, shall apply to British India and British Burma as it applies to colonies.\]](#)

[2.](#)

Proceedings in case of persons entitled to be tried by the Supreme Court of a Presidency.-

Provided always that where any person within any place in India is charged with the commission of any offence in respect of which jurisdiction is given by the said Act, or where any person charged with the commission of any such offence is brought for trial under the said Act to any place in India, if at any time before his trial he makes it appear to the Court exercising criminal jurisdiction in the place where he is so charged or brought for trial, that in case the offence charged had been committed in such place he could have been tried only in the Supreme Court of one of the three Presidencies in India; and claim to be tried by such a Supreme Court accordingly, the said Court exercising criminal jurisdiction as aforesaid shall certify the fact and claim to the Governor of such place or chief local authority thereof; and such Governor or Chief local authority thereupon shall order and cause the person charged to be sent in custody to such one of the Presidencies as such Governor shall think fit for trial before the Supreme Court of such Presidency; and the said Supreme Court and all public officers and other persons in the Presidency shall have the same jurisdiction and authorities and proceed in the same manner in relation to the person charged with such offence as if the same had been committed or originally charged to have been committed within the limits of the ordinary jurisdiction of such Supreme Court.

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